

23STCV27092 23STCV27092

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Case Number: 23STCV27092 Hearing Date: August 13, 2026 Dept: 407

Tentative

Ruling

Judge

Brock T. Hammond, Department 407

HEARING DATE: August 13, 2026 TRIAL DATE: October 12, 2026

CASE: John Doe, et al. v. Shahram Pascal Abrar,
et al.

CASE NO.: 23STCV27092

DEFENDANT/CROSS-COMPLAINANT SHAHRAM PASCAL
ABRAR'S

MOTION TO COMPEL RESPONSES, WITHOUT OBJECTIONS,
TO SPECIAL INTERROGATORIES, SET ONE, FROM CROSS-DEFENDANTS BELLEVUE OASIS LLC,
TAYFUN KADIOGLU LLC, VENICE PALOMA SUITS, LLC, PALOMA PALM

SPRINGS, LLC, AND FIT FOR A KING INC.

DEFENDANT/CROSS-COMPLAINANT SHAHRAM PASCAL
ABRAR'S MOTION

TO COMPEL RESPONSES, WITHOUT OBJECTIONS, TO
REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE, FROM CROSS-DEFENDANTS

BELLEVUE OASIS LLC, TAYFUN KADIOGLU LLC,
VENICE PALOMA SUITS, LLC, PALOMA PALM SPRINGS, LLC, AND FIT FOR A KING INC.

DEFENDANT/CROSS-COMPLAINANT
SHAHRAM PASCAL ABRAR'S MOTION

TO
DEEM REQUESTS FOR ADMISSIONS, SET ONE, ADMITTED AGAINST CROSS-DEFENDANTS BELLEVUE
OASIS LLC, TAYFUN KADIOGLU LLC, VENICE PALOMA SUITS, LLC, PALOMA PALM SPRINGS,
LLC, AND FIT FOR A KING INC.

I. BACKGROUND

On May 13, 2026, defendant
and cross-complainant Shahram Pascal Abrar ("Abrar") filed three motions to
compel cross-defendants Bellevue Oasis LLC, Tayfun Kadioglu LLC, Venice Paloma
Suits LLC, Paloma Palm Springs LLC, and Fit for a King Inc. (collectively,
"Cross Defendants"), to provide responses to Defendant's first set of Special Interrogatories
and Request for Production of Documents, and to deem the truth of the matters
admitted in Abrar's Requests for Admissions, Set One. Abrar seeks monetary sanctions against Cross-Defendants
and their counsel of record.

On July 31, 2026, Venice
Paloma Suits LLC and Fit for a King Inc. (the "Non-Suspended Cross-Defendants")
filed oppositions.

On August 3, 2026, Abrar
filed a notice of non-opposition as to Bellevue Oasis LLC, Tayfun Kadioglu LLC,
and Paloma Palm Springs LLC (the "Suspended Cross-Defendants").

II. LEGAL STANDARD

If a party to whom interrogatories and inspection demands
were directed fails to serve a timely response, the propounding party may move
for an order to compel responses without objections. (Code Civ. Proc., §§
2030.290(b), 2031.300(b).) If a party to whom requests for admission are
directed fails to serve a timely response, the propounding party may move for
an order that the truth of the matters specified in the requests be deemed
admitted. (Code Civ. Proc., § 2033.280(b).) Failure to timely serve responses

waives objections to the requests. (Code Civ. Proc., §§ 2030.290(a), 2031.300(a), 2033.280(a).) A party moving to compel discovery responses under these statutory provisions is not required to meet and confer prior to filing the motion. (See Code Civ. Proc., §§ 2030.290(b), 2031.300(b); see also *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411 [citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 906 for the proposition that “meet and confer” requirement “did not apply when propounding party sought order compelling responses to interrogatories and sanctions for responding party’s failure to respond ‘within the statutorily permitted time’”].) c c c c c

Monetary Sanctions

Code of Civil Procedure section 2023.030 is a general statute authorizing the Court to impose discovery sanctions for “misuse of the discovery process,” which includes (without limitation) a variety of conduct such as: making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to discovery; and unsuccessfully and without substantial justification making or opposing a motion to compel or limit discovery. c (Code Civ. Proc., § 2023.010.) c c c c c

c c c c c

If sanctions are sought, Code of Civil Procedure section 2023.040 requires that the notice specify the identity of the person against whom sanctions are sought and the type of sanction requested, that the motion be supported in the points and authorities, and the facts be set forth in a declaration supporting the amount of any monetary sanction. c c c c c

c c c c c

If the court finds that a party has unsuccessfully made or opposed a motion to compel responses, the court “shall impose a monetary sanction . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” c (Code Civ. Proc., §§ 2030.290(c), 2031.300(c).) With respect to untimely responses to admissions requests, sanctions are mandatory. c (Code Civ. Proc., § 2033.280(a).) c c c

c c

III. DISCUSSION

A. Non-Suspended Cross-Defendants

The motions as Non-Suspended Cross-Defendants are moot.

During the pendency of the motions, these Cross-Defendants served responses. (See Harris Decls., ¶¶ 1-4, Exs. A, B.) Abrar, having not filed any reply, does not show to the contrary.

B. Suspended Cross-Defendants

The court will

grant the motions as to Suspended Cross-Defendants. Although these cross-defendants lack the capacity to defend or otherwise participate in this litigation due to their suspended status, prior and current counsel have been aware of this issue. Yet, despite having sufficient time to rectify the suspensions, Suspended Cross-Defendants have failed to do so. “[A] plea in abatement such as lack of capacity to sue ‘must be raised by defendant at the earliest opportunity or it is waived....’ ” (Color–Vue, Inc. v.

Abrams (1996) 44 Cal.App.4th 1599, 1604.) The

court finds Suspended Cross-Defendants’ inaction has resulted in waiver of the lack-of-capacity defense. [AS1] Given this background, Abrar is entitled to an order compelling Suspended Cross-Defendants to provide verified responses, without objections to the special interrogatories and production demands.

Further, Abrar is entitled to an order deeming admitted the admissions requests against Suspended Cross-Defendants.

C. Monetary Sanctions

As to the

interrogatories and productions demands, the court declines to award sanctions. Abrar served the discovery requests during the pendency of Cross-Defendants’ prior counsel’s motion to be relieved. Moreover, responses were due when Cross-Defendants were not represented.

Under these circumstances, sanctions would be unjust.

However, in the context of a motion to deem requests for

admission admitted, sanctions are mandatory.¿ (Code Civ. Proc., § 2033.280(c).)

Accordingly, sanctions are imposed against Cross-Defendants only in the reduced amount of \$810.00.

IV. CONCLUSION

The motions are DENIED as
MOOT as to Non-Suspended Cross-Defendants.

The motions are GRANTED as
to Suspended Cross-Defendants. Suspended
Cross-Defendants are ordered to serve verified responses, without objection to
Abrar's first set of Special Interrogatories and Request for Production of
Documents within 45 days of this order.
Abrar's first set of Request for Admissions are deemed admitted against Suspended
Cross-Defendants.

Abrar's request for
sanctions is GRANTED IN PART. Cross-Defendants
are ordered pay sanctions in the total sum of \$810.00 within 30 days of this
order.

Moving party is ordered to
give notice.

Dated: August 13, 2026

Brock T. Hammond

Judge of the
Superior Court

[AS1]Note: When a corporation's suspended
status "comes to light during litigation, the normal practice is for the trial
court to permit a short continuance to enable the suspended corporation to
effect reinstatement ... to defend itself in court. [Citation.]" (Cadle Co.
v. World Wide Hospitality Furniture, Inc. (2006) 144 Cal.App.4th 504,
512–513 quoting Timberline, Inc. v. Jaisinghani (1997) 54 Cal.App.4th
1361, 1366.)